

SENATE No. 638

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve establishing a coastal waters wastewater financing commission.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>1/22/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>2/10/2025</i>

SENATE No. 638

By Mr. Montigny, a petition (accompanied by resolve, Senate, No. 638) of Mark C. Montigny, Christopher M. Markey and Mark D. Sylvia that provisions be made for an investigation and study by a special commission (including members of the General Court) to establish a coastal waters wastewater financing commission. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve establishing a coastal waters wastewater financing commission.

1 **Resolved**, Notwithstanding any general or special law to the contrary, there shall be a
2 special legislative commission to study and recommend specific revenue sources to fund
3 essential wastewater infrastructure improvements in response to nitrogen pollution in
4 southeastern Massachusetts near the Buzzards Bay watershed area specifically in the towns of
5 Acushnet, Carver, Dartmouth, Fairhaven, Lakeville, Gosnold, Marion, Mattapoissett,
6 Middleborough, New Bedford, Plymouth, Rochester, Wareham, and Westport.

7 The special legislative commission shall consist of 23 members and include the chairs of
8 the joint committee on environment and natural resources, who shall serve as co-chairs; the
9 secretary of the executive office of energy and environmental affairs or a designee; the secretary
10 of the executive office of administration and finance or a designee; the executive director of the
11 Southeastern Regional Planning and Economic Development District or a designee; the president
12 of the Buzzards Bay Coalition, Inc. or a designee; the executive director of the One Southcoast
13 Chamber, Inc. or a designee; 1 resident of the southeastern region to be appointed by the senate

14 president; 1 resident of the southeastern region to be appointed by the speaker of the house of
15 representatives; and 1 person to be appointed by the select board or mayor of each of the 14
16 affected communities.

17 All appointees shall be made no later than 30 days following the effective date of this
18 resolve. The co-chairs shall convene the first meeting of the special commission within 45 days
19 of all appointments being made.

20 In the course of its deliberations, the commission shall make it a priority to examine the
21 financial need of reducing nutrient pollution to the south coast's coastal waters including the
22 costs to (i) expand sewer infrastructure to connect more septic systems to sewerage, (ii)
23 expanding capacity and upgrading the level of treatment at existing wastewater treatment
24 facilities (iii) constructing additional wastewater treatment facilities to address expanded service
25 areas, (iv) reducing combined sewer overflow (CSO) discharges, and (v) upgrading septic
26 systems to nitrogen reducing systems. Further, the commission shall examine (i) potential
27 funding sources to finance wastewater infrastructure improvements and (ii) best practices for
28 municipal financial policies and procedures.

29 The commission shall develop funding and financing recommendations to address
30 wastewater infrastructure needs and to reduce nitrogen pollution in the southeastern region near
31 the Buzzards Bay watershed area. The recommendations shall identify fair and equitable means
32 of financing wastewater infrastructure improvements to address nitrogen pollution. The
33 commission shall have the authority to work with outside experts to conduct necessary reviews;
34 provide guidance on potential action plans; and provide economic analysis of financing sources.
35 The experts shall be specialists in the fields of tax and revenue, nutrient pollution, water quality,

36 wastewater infrastructure, and any other fields that may be useful to implement the commission's
37 tasks.

38 The commission shall hold not less than two public hearings in the southeastern region to
39 assist in the collection and evaluation of data and testimony. Experts may attend the public
40 hearings to provide testimony and any other relevant information regarding the fulfilment of the
41 commission's objectives.

42 The commission shall prepare a written report detailing identified funding sources and its
43 recommendations, if any, together with drafts of legislation necessary to carry those
44 recommendations into effect. The commission shall submit its initial report to the governor, the
45 secretary of the executive office of energy and environmental affairs, the clerks of the senate and
46 house of representatives, the chairs of the house and senate committees on ways and means and
47 the joint committee on environment and natural resources not later than 1 year after the effective
48 date of this act.